CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

Application no. 37094/03
by DEMOKRATIK FEALIYYET CEMIYYETI and ZEYNILLI
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 20 September 2007 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr L. LOUCAIDES,
Mrs N. VAJIĆ,
Mr A. KOVLER,
Mrs E. STEINER,
Mr K. HAJIYEV,
Mr D. SPIELMANN, *judges*,
and Mr A. WAMPACH, *Deputy Section Registrar*,

Having regard to the above application lodged on 7 October 2003,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together.

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

THE FACTS

The individual applicant, Mr Alakbar Zeynilli, is an Azerbaijani national who was born in 1947 and lives in Nakhchivan. He submitted the present application on his own behalf and on behalf of Demokratik Fealiyyet Cemiyyeti (*Demokratik Fəaliyyət Cəmiyyəti* – hereinafter "DFC"), a public association based in Nakhchivan. He was represented before the Court by Mr I. Aliyev, a lawyer practising in Baku. The Azerbaijani Government ("the Government") were represented by their Agent, Mr C. Asgarov.

The facts of the case, as submitted by the parties, may be summarised as follows.

Mr Zeynilli was the chairman of DFC, a non-profit public association founded on 25 December 1993 and registered by the Ministry of Justice of the Nakhchivan Autonomous Republic on 25 January 1994. The main purpose of the association's activity was promotion of democratic values among the public. Partly because of Mr Zeynilli's absence in Azerbaijan from 1995 to 2001, DFC experienced long periods of *de facto* inactivity.

In 2002 the Ministry of Justice performed a supervisory audit of public associations registered in Nakhchivan, including DFC. Following this, on 13 December 2002 the Ministry sent a warning to Mr Zeynilli, in which it stated, in general terms, that DFC's activities did not comply with the requirements of the domestic law. However, the Ministry did not specify any particular breaches of the domestic law.

On 7 March 2003 the Ministry issued another warning. The Ministry noted that it had not received any information from DFC as to any measures taken to comply with the first warning of 13 December 2002. The Ministry also noted that DFC's legal address was not mentioned in its foundation documents and that, generally, the contents of its charter did not comply with the requirements of the domestic law. As DFC had never reported to the Ministry about its activities, the Ministry informed the applicant that, in accordance with the Civil Code, a public association's state registration was subject to revocation if the association had been inactive for one year from the date of its state registration.

On 31 March 2003 the Ministry of Justice filed a lawsuit, requesting that DFC be liquidated as a legal entity. On 4 May 2003 the Nakhchivan City Court found, *inter alia*, that DFC's charter did not comply with the requirements of the domestic law, that it had not engaged in any activity since the date of its state registration, and that it had not held, and had not reported about, any regular general meetings of association members or any regular elections of its management. The court further ordered the dissolution of DFC, because it had taken no measures to remedy the mentioned breaches despite two prior warnings given by the Ministry of Justice.

On 1 September 2003 the Appeal Chamber of the Supreme Court of the Nakhchivan Autonomous Republic upheld the first instance court's judgment. On 10 December 2003 the Supreme Court of the Republic of Azerbaijan upheld the lower courts' judgments. DFC was accordingly dissolved.

COMPLAINTS

1. The applicants complained under Article 11 of the Convention that the judicial order dissolving DFC interfered with the exercise of their right to freedom of association. This interference was contrary to the domestic law, did not pursue a legitimate aim and was not necessary in a democratic society.

2. The applicants also complained under Article 6 of the Convention that the domestic courts erred in assessing the facts of the case and failed to give due consideration to the arguments and evidence submitted by the applicants.

THE LAW

The Court recalls that on 1 March 2006 it invited the applicants to submit by 12 April 2006 any written observations they might wish to make in reply to the observations submitted by the Government. The applicants failed to reply.

By a fax of 1 September 2006 the applicants' representative informed the Court about the change of his address. On 14 September 2006 the Court sent a registered letter to the new address of the applicants' representative warning him that, should he fail to reply and submit the requested information, the Court might consider that the applicants do not wish to pursue the application. This letter was received by the applicants' representative on 21 September 2006. However, the applicants again failed to reply and submit their observations.

In these circumstances, having regard to Article 37 § 1 (a) of the Convention, the Court finds that the applicants have lost interest in their application and no longer intend to pursue it before the Court. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the examination of the application to be continued.

In view of the above, it is appropriate to discontinue the application of Article 29 § 3 of the Convention and to strike the application out of the list of cases.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

André WAMPACH
Deputy Registrar

Christos ROZAKIS
President